



Southern Rhodesia Act 1965

1965 CHAPTER 76

An Act to make further provision with respect to Southern Rhodesia. [16th November 1965]

B E IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Status of
Southern
Rhodesia.

1. It is hereby declared that Southern Rhodesia continues to be part of Her Majesty's dominions, and that the Government and Parliament of the United Kingdom have responsibility and jurisdiction as heretofore for and in respect of it.

Powers with
respect to
Southern
Rhodesia.

2.—(1) Her Majesty may by Order in Council make such provision in relation to Southern Rhodesia, or persons or things in any way belonging to or connected with Southern Rhodesia, as appears to Her to be necessary or expedient in consequence of any unconstitutional action taken therein.

(2) Without prejudice to the generality of subsection (1) of this section an Order in Council thereunder may make such provision—

- (a) for suspending, amending, revoking or adding to any of the provisions of the Constitution of Southern Rhodesia 1961;
- (b) for modifying, extending or suspending the operation of any enactment or instrument in relation to Southern Rhodesia, or persons or things in any way belonging to or connected with Southern Rhodesia;
- (c) for imposing prohibitions, restrictions or obligations in respect of transactions relating to Southern Rhodesia or any such persons or things,

as appears to Her Majesty to be necessary or expedient as aforesaid; and any provision made by or under such an Order may apply to things done or omitted outside as well as within the United Kingdom or other country or territory to which the Order extends.

(3) An Order in Council under this section may make or authorise the making of such incidental, supplemental and consequential provisions as appear to Her Majesty to be expedient for the purposes of the Order, and any provision made by or under such an Order may be made to have effect from any date not earlier than 11th November 1965.

(4) An Order in Council under this section may be revoked or varied by a subsequent Order in Council thereunder.

(5) An Order in Council under this section shall be laid before Parliament after being made and shall expire at the end of the period of twenty-eight days beginning with the day on which it was made unless during that period it is approved by resolution of each House of Parliament.

The expiration of an Order in pursuance of this subsection shall not affect the operation of the Order as respects things previously done or omitted to be done or the power to make a new Order; and in calculating the period aforesaid no account shall be taken of any time during which Parliament is dissolved or prorogued or during which both Houses are adjourned for more than four days.

3.—(1) Subject to the following provisions of this section, section 2 of this Act shall continue in force for the period of one year beginning with the date of the passing of this Act and shall then expire unless it is continued in force in accordance with subsection (2) of this section. Duration of section 2.

(2) Her Majesty may from time to time by Order in Council provide that section 2 of this Act shall continue in force for a period of one year beyond the date on which it would otherwise expire; but no recommendation shall be made to Her Majesty in Council to make an Order under this subsection unless a draft of the Order has been laid before Parliament and approved by resolution of each House of Parliament.

(3) The expiration of section 2 of this Act shall not affect—

- (a) the operation of that section as respects things previously done or omitted to be done; or
- (b) the Constitution of Southern Rhodesia 1961 as in force immediately before the expiration of that section.

4.—(1) This Act may be cited as the Southern Rhodesia Act 1965. Short title and extent.

(2) This Act extends to Southern Rhodesia, the Channel Islands, the Isle of Man, any colony or protectorate within the meaning of the British Nationality Act 1948, and (to the extent of Her Majesty's jurisdiction therein) to any foreign country or territory in which for the time being Her Majesty has jurisdiction: 1948 c. 56.

Provided that no Order in Council under section 2 of this Act shall extend to any place other than the United Kingdom or Southern Rhodesia as part of the law of that place, except so far as it makes provision with respect to ships or aircraft to which this section applies, or affects the operation of any Act of Parliament which has effect in that place, with or without modifications, as part of its law, or of any instrument in force under any such Act.

(3) This section applies to British ships registered in the United Kingdom or any other country or place to which this Act extends, and to aircraft so registered.